

Hugh Grantsfemenel baron of Hinkley held that barony by the said office.

Of ancient time this office was of inheritance, and appertained to the earldome of Leicester, as it also appeareth by the said record: *Seneschalcia Angliæ pertinet ad comitum de Leicester, et pertinet ab antiquo*. That is, that the earldome of Leicester was holden by doing of the office of steward of England. Other records testifie that it should belong to the barony of Hinkley. The truth is, that Hinkley was parcell of the possessions of the earle of Leicester, for Robert Bellogmont earle of Leicester in the reigne of H. 2. married with Petronil daughter and heir of the said Hugh Grantsfemenel baron of Hinkley and lord steward of England, and in her right was steward of England. And so it continued, untill by the forfeiture of Simon Mountfort it came to king H. 3. who in the 50 year of his reign, created Edmond his second son earle of Leicester, baron of Hinkley, and high steward of England, which continued in his line untill Henry of Bullinbroke * son and heir of John of Gaunt duke of Lancaster and earl of Leicester, who was the last that had any estate of inheritance in the office of the steward of England. Since which time it was never granted to any subject, but only *hac vice*. And the reason was, for that the power † of the steward of England was so transcendent, that it was not holden fit to be in any subjects hands: for the said record saith, *Et sciendum est quod ejus officium est supervidere, et regulare sub rege, et immediate post regem totum regnum Angliæ, et omnes ministros legum infra idem regnum temporibus pacis et guerrarum, &c.* and proceedeth particularly with divers exceeding high powers and authorities, which may well be omitted, because they serve for no present use.

* Rot. par.
21 R. 2. nu. 4.
Int. placita cor-
ronæ Joh. of
Gaunt duke of
Lanc. and earl
of Leicester,
steward of Eng-
land.

His authority
hac vice: and
therefore he is
not mentioned
in the statute of
31 H. 8. ca. 10.
concerning the
placing of great
officers.

† [59]

b Herewith
agreeth the cus-
tom. of Norm.
cap. 10. fo. 17.
Hollensh. Chron.
p. 866.

c His authority
(*hac vice*) limit-
ed.

d See the second
part of the In-
stitutes, Mag.
Cart. cap. 29.

e He is sole
judge by the
common law,
and can make
no deputy.

f Stanf. pl. cor.
152. 1 H. 4.
fo. 1. 13 H. 8.
fo. 11. b.

g His rule.
h His further
authority.

* And albeit their power and authority have been since the reign of H. 4. but *hac vice*, yet is that *hac vice* limited and appointed. As when a lord of parliament is ^d indicted of treason or felony, then the grant of this office under the great seal is to a lord of parliament, reciting the indictment, *Nos considerantes quod justitia est virtus excellens et altissimo complacens, eaq; præ omnibus uti volentes, ac pro eo quod officium seneschalli Angliæ, cujus præsentia pro administratione justitiæ et executione ejusdem in hac parte facien' requiritur, ut accepimus, jam vacat: de fidelitate, strenuitate, provida circumspectione, et industria vestris plurimum confidentes ordinavimus et constituimus vos ex hac causa et causis seneschallum nostrum Angliæ ad officium illud cum omnibus eidem officio in hac parte debitis et pertinentibus hac vice gerend', accipiend', et exercend', † dantes et concedentes vobis tenore presentium plenam et sufficientem potestatem et auctoritatem, ac mandatum speciale indultum prædict'. &c.* So as it appeareth, that this great officer is wholly restrained to proceed only upon the recited indictment. And he to whom this office is granted, must be a lord of parliament, and his proceeding is to be *secundum leges et consuetudines Angliæ*, for so is his commission. And hereof you may read more at large in the third part of the Institutes, cap. High Treason. ^b Also at every coronation he hath a commission under the great seale *hac vice*, to hear and determine the claimes for grand serjeanties and other honourable services to be done at the coronation for the solemnization thereof: for which purpose the high steward doth hold his court some convenient time before the coronation.

nation. See a president hereof before the coronation of king R. 2. John duke of Lancaster then steward of England, (who in claymes before him was stiled *tres honorable seignior le roy de Castile et Leon, et seneschal D'anglitterre*) and held his court in *Alba Aula apud Westm. die Jovis proxime ante coronationem. Quæ quidem coronatio habita et solemnizata fuit die Jovis sequente, viz. 16 Julii anno 1 R. 2.*

The first that was created *hac vice* for the solemnization of the coronation of H. 4. was Thomas his second son. ¹ And upon the arraignment of John Holland earl of Huntingdon, the first that was created steward of England *hac vice*, was Edward earl of Devon.

Rot. parl. 37 H. 6. nu. 49. Thomas Courtney earl of Devon was arraigned of high treason before Humphrey duke of Glouc. *hac vice* steward of England, and acquitted. And so was ^k the lord Dacres of the north arraigned of high treason before Thomas duke of Norff. *hac vice* steward of England and acquitted by 20 peers.

When he sitteth by force of his office he sitteth under a cloth of estate, and such as direct their speech unto him, say, Please your grace my lord high steward of England. The stile of the said John of Gaunt was, *Johannes filius regis Angliæ, rex Legionis et Castellæ, dux Aquitaniæ et Lancastriæ, comes Derbiæ, Lincolnæ, et Leicestriæ, seneschallus Angliæ.* And in respect his power before it was limited was so transcendent, I finde no mention made of this great officer in any of our ancient authors, the Mirror, Bracton, Britton, or Fleta. It seemeth they liked not to treat of his authority. ⁴ Neither do I finde him in any act of parliament, nor in any book case before 1 H. 4. and very few since: which hath caused me to be the longer in another place to set forth his authority and due proceeding upon the arraignment of a peer of the parliament, by judiciall record and resolution of the judges, agreeable with constant experience.

For the etymologie and signification of (*seneschallus*) see the first part of the Institutes: and though it hath severall derivations, yet as being applied to England, it is properly derived from *sen*, that is justice, and *schale*, that is, governour or officer, that is, *præfectus seu officarius justitiæ.* And this agreeth well with his authority and duty to proceed (as hath been said) *secundum leges et consuetudines Angliæ.*

It is to be observed, that as the peers of the realm that be triors or peers, are not sworne, so the lord steward being judge, &c. is not sworn: yet ought he according to his letters patents to proceed *secundum legem et consuetudinem Angliæ.*

¹ V. 1 H. 4. fo. 1. Therefore Tho. Walsingham, p. 363. and others who affirme that he was beheaded at Pleshy in Essex by the commons, do erre.

^k Term. Pasch. 26 H. 8. of justice Spilman's report.

See the third part of the Institutes, cap. Treason.

[60]
First part of the Institutes, sect. 78.

C A P. V.

The Honourable Court of Star-Chamber, *coram Rege et Concilio suo*: Of ançient Time, *coram Rege in Camera*, &c.

That it is an emper court proved by records and acts of parliament.

^a 22 Lib. ass. pl. 52.

^b Rot. pat. 1 part. m. 12. *Fraud and falsehood.*

^c Rot. pat. 1 part. m. 13. *Falshood in an officer and raising of a record.*

^d Rot. clauf. 41 E. 3. m. 8. in dorf. *Vid. rot. pat. 2 R. 2. 1 part. m. camera stellata. for raising.*

12 R. 2. cap. 11. *dev. le council.*

^e Rot. clauf. 41 E. 3. Cambd. Brit. 130.

^f Rot. clauf. 16 R. 2. in dorf. m. 11.

^g Pat. 6 H. 5. & consimile anno 7 H. 5. pro manerio de Fish-erwicke in Com. Norff.

IN^a the 28 year of the reign of E. 3. it appeareth, that the returns *coram nobis*, are in three manners, *coram nobis in camera* (which, it is said, was afterwards called *camera stellata*.) 2. *Coram nobis ubicunque fuerimus in Anglia*, which is the kings bench; and *coram nobis in cancellaria*. And of all the high and honourable courts of justice, this ought to be kept within his proper bounds and jurisdiction.

^b In 38 E. 3. *coram rege et concilio*, John Redland complained of Robert Spinke for delivery of prisoners upon false suggestion made to the king: upon hearing the cause, the defendant was acquitted, the plaintife imprisoned.

^c In 39 E. 3. Ralph Brantingham one of the chamberlains of the exchequer complained before the king and his councill of Richard Cesterfield clerk deputy of the kings treasurer, in the receipt for divers allowances, payments, &c. unduly made, and for raising of records, &c. Upon the hearing of the cause by the whole councill, the defendant was acquitted, and the plaintife removed from his office, and committed to prison.

^d The abbot de Bruera, and Ragge his monk sentenced *coram rege et concilio*, for raising of letters patents, and inserting other words: and the letters patents by sentence cancelled.

^e In anno 41 E. 3. in a bill of complaint exhibited to the king by Elizabeth the widow of Nicholas Awdeley plaintife, against Jane Awdeley defendant, who appeared before the kings councill, viz. the chancellor, treasurer, justices, and others assembled *en la chambre des estoils pres de la receits*.

^f A suit depending before the king and councill between the abbot of Saint Austen of Canterbury and others concerning wrecks, &c. The abbot brought his action at the common law against the parties, who being thereupon arrested and imprisoned, the sheriffe was commanded by the kings writ to deliver them, and to forbear to serve any other proces against them; and the reason there yielded is notable, *Quia non est juri consonum, aut honestum, quod aliquis de hiis quæ coram nobis et concilio nostro in discussione pendunt, alibi inde interim placitari debeat, aut apparere.*

^g A suit depending before the king and his councill, between W. G. of the one part, and H. S. of the other part: a sequestration is ordered for the preservation of the things in question.

In

^a In 17 H. 6. an inrolment of a confession of John Ford of Lon. mercer before the lord treasurer and others of the kings counsell in the star chamber for the * fraudulent packing and transporting of wooll, with a writ to the sheriffe of London to set him on the pillbry.

^h Rot. clauf.
17 H. 6.

The abbot of Westminster exhibited his bill to the king against the sheriffes of London for arresting and drawing out with force a privileged person out of the sanctuary of S. Martins le grand belonging to the said abbey: which matter after due proceedings being heard in the court of star-chamber before the lords and others of the kings counsell, and Hodey and Newton chief justices, which justices determiniing, that by law the party ought to enjoy the privilege of sanctuary, the sheriffes were grievously fined in the star-chamber by particular name: which sentence the lord Dier, as he hath reported under his own hand, saw upon a reference to him and justice Southcote out of the star chamber, Trin. 11 *regine Eliz.* concerning the sanctuary of Westm. for Hampton and Whitacres being in for debt. And the lord Dier made this note with his own hand. *Nota, per le star-chamber.* And this is a notable proof of the jurisdiction of the court for fining, &c. That the bill was exhibited to the king, and that the two chief justices then did sit, and were judges (amongst others) in that court.

Anno 29 H. 6.
Trin. 1. Eliz.
Dier. manuscript
not imprinted.

For divers riots, extortions, oppressions, and grievous offences by divers persons done against the kings peace and lawes, to divers of his liege people, commandement hath been given by the kings writs under the great seale (which continue untill this day) to appear before the king in the chancery, or before him and his counsell at certain dayes to answer to the premisses, which commandement hath been many times disobeyed. Provision is made by that act for the punishment of such disobedience, as by that act appeareth. True it is, that this act was but temporary, yet it affirmeth so much as before hath been said,

Stat. de 31 H. 6.
cap. 2.
Vide Rot. parl.
1 H. 6. nu. 41.

Anno 35 H. 6. A writ of *certiorari* was directed: *Thomæ Kent clerico caschii: volentes certis de causis certiorari super tenorem cujusdam actus Pasch. ultime præterito apud Westm. in camera stellata concernen Johannem ducem Norff.* And see there proces of rebellion against the laid duke.

Ex bundello brevium regis.
35 H. 6.

Robert Davers a counsellor at law by bill exhibited to the king, &c. for defamation of raising a record. And the said Robert by the kings counsell in *camera stellata* was acquitted, and John Broket that made the rasure sentenced.

Rot. clauf.
11 H. 6.

The kings counsell assembled in the star-chamber. The lord Cromwels case.

Rot. clauf.
28 H. 6.

An order in the star-chamber for the duke of Yorks counsell to have accessse to him, because called into the chamber by privy seale, &c.

Rot. pat. 32 H. 6.
m. 20.

An exemplification of a complaint by Richard Heron against John Prout, *coram rege et consiliariis suis in camera stellata*, for a great misdemeanour concerning wools.

Pat. 3 E. 4. part. 1.

Anno 8 E. 4. proceeding by English bill, answer, replication, &c. *coram rege et consilio.*

Rot. petit. 8 E. 4.

Anno 20 E. 4. a sentence in the star-chamber for turbulent and undue elections between the abbot of Bury and the inhabitants.

Rot. pat. 20 E. 4.
part. 2.

We

We have omitted many other records, but because they be of like nature we have contented our self with these. And now we will consult with our book cases, and reports of law: wherein either *coram rege et concilio*, or *coram rege et concilio in camera stellata*, is named.

Book cases and reports of law.

39 E. 3. fo. 14. 19 aff. pl. 1. 40 aff. 38. 13 E. 4. 9. *in camera stellata*. Vid. 27 E. 3. cap. 13. 21 E. 4. 71. *in camera stellata*. 2 R. 3. fo. 2. & 11. *in camera stellata*. 1 H. 7. 3. *in camera stellata*. This court in ancient times sat but rarely, for three causes. First, for that enormous and exorbitant causes which this court dealt withall only in those days rarely fell out. Secondly, this court dealt not with such causes, as other courts of ordinary justice might condignely punish, *ne dignitas hujus curiæ vilesceret*. Thirdly, it very rarely did sit, lest it should draw the kings privie council from matters of state, *pro bono publico*, to hear private causes, and the principall judges from their ordinary courts of justice.

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3 H. 7. ca. 1.

That which now is next to be considered in *serie temporis* is the statute of 3 H. 7. the letter whereof followeth:

21 H. 8. ca. 20.
The president of
the kings coun-
cell added.

It is ordained that the chancelour and treasurer of England, and the keeper of the kings privy seal, or two of them, calling to them a bishop and a temporal lord of the kings most honourable privy counsell, and the two chief justices of the kings bench and common place for the time being, or other two justices in their absence, upon bill or information put to the said lord chancelour or any other against any person for unlawfull maintenance, giving of liveries, signs and tokens, and reteyners by indentures, promises, oaths, writings or otherwise, imbraceries of his subjects, untrue demeaning of sherifs in making of pannels, and other untrue returns, by taking of mony, by injuries, by great riots, and unlawfull assemblies, have authority to call before them by writ or privy seale the said misdoers, and they and other by their discretion, by whom the truth may be known to examine, and such as they find therein defective, to punish them after their demerits, after the form and effect of statutes thereof made in like manner and form as they should, and ought to be punished, if they were thereof convicted after the due order of law.

Camden Brit.

Camera stellatae auctoritatem prudentissimus princeps Henricus septimus ita parliamentaria adauxit et constabiliavit, nonnulli primum instituisse falso opinantur.

Upon this statute and that which formerly hath been said, these fix conclusions do follow. The first conclusion is, that this act of 3 H. 7. did not raise a new court: for there was a court of star-chamber, and all the kings privy council judges of the same. For if the said act did establish a new court, then should those four or any two of them be only judges, and the rest that they should call to them should be but assistants, and aidants, and no judges: for the statute of 31 E. 3. cap. 12. which raiseth a new court, and before

fore new judges, is introductory of a new law, by having conuſance of error in the exchequer, which ſhall be reverſed in the exchequer chamber before the chancelour and treaſurer, or calling to them two judges, there the chancelour and treaſurer are only judges in the writ of error, and ſo in the like. But it is clear that the two juſtices in the ſtar-chamber are judges, and have voices, as it hath been often reſolved, and daily experience teacheth. And further to clear this point, if the juſtices ſhould be but aſſiſtants and no judges in the ſtar-chamber, for that they are to be called, &c. then, and for the ſame reaſon ſhould neither lord ſpiritual nor temporal, nor other of the privy counſell be judges, nor have voices in the court of ſtar-chamber. And therefore the ſudden opinion in 8 H. 7. and of others not obſerving the ſaid diſtinction between acts declaratory of proceedings in an ancient court, and acts introductory of a new law in raiſing of a new court, is both contrary to law, and continually experience.

8 H. 7. 13.
Flow. Com. 393.

The ſecond concluſion is, that the act of 3 H. 7. being in the affirmative is not in ſome things purſued. For where that act directeth that the bill or information ſhould be put to the lord chancelour, &c. all bills and informations in that court are conſtantly and continually directed to the kings majeſty, as they were before the ſaid act; and it is a good rule, that where the act of 3 H. 7. is not purſued, there (if there be many judiciall preſidents in another fort) they muſt have warrant from the ancient court; and yet it is good (as much as may be) to purſue this act, there being no greater aſſurance of juriſdiction then an act of parliament. And where there be no ſuch preſidents, then the ſtatute as to the judges muſt be purſued: and that was the reaſon that in default of others, Sir Chriſtopher Wray chief juſtice of England for a time was made lord privy ſeal to ſit in the ſtar-chamber, *ne curia deſiceret in juſtitia exhibenda*.

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Thirdly, that this act being (as hath been ſaid) in the affirmative, and enumerating divers particular offences, albeit (injuries) is a large word, yet that court hath juriſdiction of many other, as is manifeſt by authority, and daily experience, and this muſt of neceſſity be in reſpect of the former juriſdiction.

Fourthly, this act in one point is introductory of a new law, which the former court had not, viz. to examine the defendant, which being underſtood after his anſwer made, to be upon oath upon interrogatories, which this ancient court proceeding in criminal cauſes had not, nor could have but by act of parliament, or preſcription, the want whereof eſpecially in matters of frauds and deceits (being like birds cloſely hatched in hollow trees) was a mean that truth could not be found out, but before the ſtatute the anſwer was upon oath.

Fifthly, where it is ſaid in this act, And to puniſh them after their demerits after the form and effect of ſtatutes made, &c. The plaintife may chooſe whether he will inform upon ſuch ſtatutes as this act directeth, or for the offence at the common law, as he might have done before this act, which proveth that this act taketh not away the former juriſdiction.

6. Laſtly, that the juriſdiction of this court dealeth not with any offence, that is not *malum in ſe*, againſt the common law, or *malum prohibitum*, againſt ſome ſtatute.

It

It is to be observed that neither the statutes of 37 E. 3. ca. 18. 38 E. 3. cap. 9. 42 E. 3. ca. 3. 17 R. 2. ca. 6. nor any other statute taketh away the jurisdiction of any settled court of justice, neither is the court of star-chamber named in any of them, and yet was it a court then and before that time.

Divers speciall acts of parliament have been also jurisdiction to this court, viz. 12 R. 2. ca. 11. 2 R. 2. cap. 5. 13 H. 4. cap. 7. 33 H. 8. cap. 1. 4 & 5 Ph. and M. cap. 8. 5 Eliz. ca. 9, 10. & cap. 14. 27 Eliz. cap. 4.

And seeing the proceeding according to the laws and customes of this realm cannot by one rule of law suffice to punish in every case the exorbitancy and enormity of some great horrible crimes and offences, and especially of great men, this court dealeth with them, to the end that the medicine may be according to the disease, and the punishment according to the offence, *Ut pœna ad paucos, metus ad omnes perveniat*, without respect of persons, be they publique or private, great or small.

As for oppression, and other exorbitant offences of great men, (whom inferior judges and jurors (though they should not) would in respect of their greatnesse be affraid to offend) bribery, extortion, maintenance, champerty, imbracery, forgery, perjury, disseisers of false and dangerous rumours, news, and scandalous libelling, false and partiall misdemeanours of sherifs and bailiffs of liberties, frauds, deceits, great and horrible riots, routs, and unlawfull assemblies, single combats, challenges, duels, and other hainous and extraordinary offences and misdemeanours; but ordinary, and such offences as may be sufficiently and condignly punished by the proceeding of the common laws, this court leaveth to the ordinary courts of justice and dealeth not with them, *ne dignitas hujus curiæ vilesceret*, as before is said.

The proceeding in this court is by bill or information, by examination of the defendant upon interrogatories, and by examination of witnesses, and rarely *ore tenus*, upon the confession of the party in writing under his hand, which he again must freely confesse in open court, upon which confession in open court, the court doth proceed. But if his confession be set down too short, or otherwise then he meant, he may deny it, and then they cannot proceed against him but by bill or information, which is the fairest way.

The informations, bills, answers, replications, &c. and interrogatories are in English, and ingrossed in parchment, and filed up. All the writs and processe of the court are under the great seal: the sentences, decrees and acts of this court are ingrossed in a fair book with the names of the lords and others of the kings counsell and justices that were present and gave their voices.

In an information in this court by the attorney generall against Sir Stephen Procter, Birkenhead and others for conspiracy against, and scandall of the earl of Northampton, and Edward lord Wootton two of his majesties privy counsell: at the hearing of which cause there sat eight in court, and four of them condemned the defendant: and the lord chancelour, the two bishops, and the chancelour of the exchequer acquitted him. And the question was, whether the defendant should be condemned or no: and herein it was moved by the kings learned counsell, that when the voices be equal,

The jurisdiction
of this court

Camden Brit.
130. *In camera
stellata tractantur
criminalia, per-
juria, imposturae,
delus malis, ex-
cessus, &c.*

For proceeding,
ore tenus, see be-
fore ro. clauf.
17 H. 6. John
Fords case.
Rot. clauf.
42 E. 3. the ab-
bot of Brueries
case, &c. *In no-
seriis ordo est or-
dinem juris non
servare.*

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Pasc. 12 Ja. Reg.

equall, that in that case, of which part the lord chancellor was, on that side it should be decreed, without regard, whether it was for the plaintiff or defendant: and it was resolved, that regularly *et de communi jure*, in respect of the equality of the voices no sentence could be given in that case, as it holdeth in the high court of parliament, and all other courts, according to the old rule, *paribus sententiis reus absolvitur*. And therefore the presidents of this court were to be searched; for except presidents could make a difference between this court and others, the defendant could not be sentenced. Whereupon the court referred this question to the two chief justices, that they calling unto them the kings learned counsell to view presidents, whether by the custome of this court the common rule in other courts is altered. Before whom in the presence of the kings learned counsell two presidents were produced for proof of the said custome, viz. one Termino Hil. anno 39 Eliz. between Gibson plaintiff, and Griffith and others defendants: wherein the complaint was for a riot. And upon hearing of the cause eight sat in court, and four gave their sentence that the defendants were guilty, and the other four, whereof the lord chancelour was one, did acquit the defendants, and no sentence of condemnation was ever entred. But the justices took it, that that president tended not to prove any such custome, for it agreed with the rule in other courts. Another president was shewed, Termino Hil. 45 Eliz. in an information by the queens attorny generall against Bathern and others for forging of a will, &c. Upon the hearing of the cause, the presence consisting of eight, whereof four gave sentence against the defendant for forgery, and to be punished according to the statute of 5 Eliz. the other four, whereof the lord chancelour was one, found him guilty of a misdemeanour, and not of the forgery, and imposed a fine of five hundred pound only, and imprisonment, and that was entred according to the lord chancelours voice. But no rule of court was shewed for entring thereof in that manner: so as it appeared not that it was ever moved, or debated in court, and in that case all concluded against the defendant, and it is but one president. Now whether this one, being such a one as it is, and so late, be sufficient to alter the generall law and course of all other courts, I leave to the judgment of this honourable court: and sentence was never given against Sir Stephen Procter agreeable to the generall rule in other courts. See Rot. parl. 8 H. 6. nu. 28.

Erodus fo. 172.

Hil. 39 Eliz. in camera stellata, Gibsons case.

Hil. 45 EL. in camera stellata, Batherns case.

Lawrence Hide and Henry Hide esquires, exhibited a bill of complaint against George Coriet and others upon the statute of 32 H. 8. cap. 9. for unlawfull maintenance; and complained for three severall leases for certain years of the parsonage of Dynton in the county of Wilt. whereof the lessor nor any of his ancestors were in possession within a year before, &c. and pursued the statute: upon which part of the bill (for the bill concerned riots and other things) the defendant demurred in law, and the causes of the demurrer were. First, that by the said act this court had no jurisdiction of this cause upon this statute, because that the act which is introductory of a new law did not give jurisdiction to this court, but the suit must be in the courts of the common law upon this act, which (said they) also appeared, in that in the remedy given by the act in this clause, *In which action, bill, plaint,*

Mic. 36 & 37 EL.

or information no *essoign*, *protection*, *wager of law*, or *injunction* shall be allowed, and that no *essoign*, &c. did lie in this court. The second objection was, this court had no power to give the plaintiff remedy to have execution in this court of the penalty given by this act. Whereunto upon great advisement it was answered and resolved. As to the first: that the statute did give jurisdiction to this court, for it is one of the kings courts, &c. intended in the act: and the statute of 3 H. 7. declareth that this court hath jurisdiction of maintenance, and this act of 32 H. 8. doth adde but a greater penalty: and as to the clause of *essoign*, &c. it must be construed *reddendo singula singulis*, &c. for as no *essoign*, &c. lieth in this court, so no *injunction* is awarded in the court of common pleas, &c. As to the second: it was resolved that this court had power in this case to grant execution of the penalty inflicted by this act, as in a like case had been done, in the case of James Taverner. And both these points had formerly been resolved in this court, 14 Maii. 27 Eliz. between Robert Bradshaw esquire plaintiff, and Robert Charnock esquire defendant, upon this statute, and the case decreed accordingly, and a commission awarded out of this court, to enquire of the value, &c. And for these causes by the rule of the whole court, the demurrer was over-ruled, and the defendant ordered to answer.

This court sitteth twice in the week in the term time, viz. on Wednesdays, and Fridays, except either of those dayes fall out to be the first or last day of the terme, and then the court sitteth not, but it constantly holdeth the next day after the terme ended: but if any cause be begun to be heard in the terme time, and for length or difficulty cannot be sentenced within the term, it may be continued and sentenced after the term.

It is the most honourable court, (our parliament excepted) that is in the Christian world, both in respect of the judges of the court, and of their honourable proceeding according to their just jurisdiction, and the ancient and just orders of the court. For the judges of the same are (as you have heard) the grantees of the realm, the lord chancellor, the lord treasurer, the lord president of the kings councill, the lord privy seal, all the lords spirituall, temporall, and others of the kings most honourable privy councill, and the principall judges of the realm, and such other lords of parliament as the king shall name. And they judge upon confession, or deposition of witnesses: and the court cannot sit for hearing of causes under the number of eight at the least. And it is truly said, *Curia camera stellata, si vetustatem spectemus, est antiquissima, si dignitatem, honoratissima*. This court, the right institution and ancient orders thereof being observed, doth keep all England in quiet.

Albeit the stile of the court be *coram rege et concilio*, yet the kings councill of that court hear and determine causes there, and the king in judgment of law is always in court. As in the kings bench the stile of the court is *coram rege*, and yet his justices who are his councill of that court doe hear and determine, and so *coram rege in cancellaria*, and the like.

So this court being holden *coram rege et concilio*, it is or may be compounded of ^a three severall counells. That is to say, of the lords and others of his majesties privy councill, always judges with

out

Dier Mich. 6 &
7 Eliz. fo. 236.

Dier 15 El. 323.
in camera stellat.
Taverners case. Pasc.
27 El. in camera stellata.
Charnocks case.

The dignity of
this court.

The judges of
this court.

Camb. ubi supra.

^a See the 1. part
of the Institutes.
sect. 164. *Verb.*
weigne les Bur-
geses al parla-
ment.

4 E. 3. 2. 3 ass.
pl. 15.

out appointment, as before it appeareth. 2. ^b The judges of either bench and barons of the exchequer are of the kings council for matter of law, &c. and the two chief justices, or in their absence other two justices, are standing judges of this court. 3. The lords of parliament are properly *de magno concilio regis*, but neither these, being not of the kings privy councill, nor any of the rest of the judges or barons of the exchequer are standing judges of this court.

^b 39 E. 3. 5.
19 E. 3. Judg-
ment. 174.
W. 1. ca. 1.
17 E. 2. *Stat. de
Templariis*.
16 R. 2. *Stat. de
Pronunciis*.
43 Aff. pl. 15.
Regist. 124, 125.
191. 27 H. 6. 5.

² R. 3. 10. ^c 27 Aug. 5 H. 4. in the exchange between the king and the earl of Northumberland, in *turre*. 37 E. 3. ca. 18. &c. Note the parliament is called *commune concilium*.

It is now, and of ancient time hath been called the chamber of the ^d stars, the ^e star-chamber, the ^f starred chamber, in respect the roof of the court is garnished with golden stars. Some have imagined that it should be called the star-chamber, because *crimina stellionat* are there handled: others of this Saxon word *stecran*, to steer or rule as doth the pilot, because this court doth steer and govern the ship of the common-wealth. Others, because it is full of windows: but the true cause of the name is, because, as is aforesaid, the roof is starred. In all records in Latin, it is called *camera stellata*.

The name of this court.

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^d 41 E. 3. ubi sup.
^e In many of the records before cited.
^f 25 H. 8. ca. 1.
Lambard.
Sir Tho. Smith.
lib. 2. ca. 4.

The processe in this court is *suppana*, attachment, processe of rebellion, &c. all under the great seal.

The processe.

Officers of the court sworn.

In this court there is the clerk of the councill, which is an office of great account, and trust, for he is to receive, endorfe, enter, keep, and certifie the bills, pleadings, records, orders, rules, sentences and decrees of the court: and I find that in former times men of great account have had that office in this court: as to give you a little taste thereof: king H. 6. by his letters patents, 15 July *anno regni sui* 22. granted the same to Thomas Kent doctor of the law for his life, calling him *clericum concilii nostri*, and soon after swore him of his privy councill. King H. 7. *anno* 1. of his reign, granted the same office to John Bladefwell doctor of laws for term of his life: but hereof this little taste shall suffice.

Lastly, it remaineth to be seen what jurisdiction this court hath in punishment, and where, and in what cases this court may inflict punishment by pillory, papers, whipping, losse of ears, tacking of ears, *stigmata* in the face, &c. (For it extendeth not to any offence that concerns the life of man or obtruncation of any member, the ears only excepted, and those rarely and in most hainous and detestable offences.) But herein the surest rule is, that seeing it is an ancient court, the presidents of the court are to be followed, and the rather for that the court consisteth of such learned and honourable judges. And novelties without warrant of presidents are not to be allowed: generally some certain rules are to be followed, especially where no presidents are extant in the case. * *Quod arbitrio iudicis relinquitur, non facile trahit ad effusionem sanguinis*: for generall acts of parliament which inflict punishment, viz. *sur for-seiture de corps et de avoir*, &c. these are expounded not to extend to life, or member, but to imprisonment, &c.

Ecclesiasticus
20. 8. *Qui potestatem sibi sumit injuste, adiatur.*
* See *statut. de moneta tempis*
E. 1. 35 E. 1.
de Carlisle.
20 E. 3. ca. 4.
Vid. 23 El. ca. 2.
And note where he shall lose his ears for defamation of the queen.

See the first part of the Institutes, sect. 745. verb. Felony. *Major*

jore pœna affectus, quam legibus statut' est, non est infamis. Pœna gravior ultra legem posita æstimationem conservat. Confessus in jure pro judicâto habetur, cum quodammodo sua sententia damnatur. Cum consensu sponte mitius est agendum.

In hac curia non agitur de delictis ordinariis, ne dignitas hujus curiæ vilesceret.

Quicquid judicis auctoritati subjicitur, novitati non subjicitur.

[67]

C A P. VI.

A Court for Redresse of Delayes of Judgements
in the Kings great Courts.

24 E. 3. cap. 5.
stat. 1.
Rot. parl. 2 R 2.
nu. 63. confirm-
ed by parliament.

Judgements de-
layed.

* Nota, by good
advice of the
chancellor,
treasurer, and
justices.

Good accord.

Vide Regist.
fo. 124. b.
Rex Johanni de
B. Militi, &c.

THIS court is raised by the statute of 14 E. 3. which followeth in these words.

Item, Because divers mischieves have happened of that, that in divers places, as well in the chancery, as in the kings bench, the common bench, and in the exchequer, before the justices assigned, and other justices to hear and determine deputed, the judgements have been delayed, sometimes by difficulty, sometimes by divers opinions of the judges, and sometime for some other cause: it is assented, established, and accorded, that from henceforth at every parliament shall be chosen a prelate, two earls, and two barons, which shall have commission and power of the king to hear by petition delivered unto them the complaints of those that will complaine them of such delayes and grievances made, and they shall have power to do come before them at Westminster, or elsewhere, where the places or any of them shall be, the tenor of records and proceses of such judgements so delayed, and to cause the same justices to come before them, which shall be then present to hear their cause and reasons of such delayes: which cause and reason so heard by * good advice of themselves, the chancelor, treasurer, the justices of the one bench, and of the other, and other of the kings council, as many and such as shall seem convenient, shall proceed to take a good accord, and make a good judgement: and according to the same accord so taken, the tenor of the same record, together with the judgement which shall be accorded, shall be remaunded before the justices, before whom the plea did depend; and that they shall give judgement according to the same record: and in case it seemeth to them that the difficulty be so great, that it may not well be determined without assent of the parliament, that the said tenor or tenors shall be brought by the said prelate, earles, and barons in the next parliament

Cap. 6. For Redresse of Delays of Judgements.

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parliament, and there shall be a final accord taken what judgement ought to be given in this case, and according to this accord it shall be commanded to the judges before whom the plea did depend; that they shall proceed to give judgement without delay.

Before the making of this statute delay of judgements was forbidden both by the common law, and by acts of parliament. By the common law. 1. It is required, that *plena et celeris justitia fiat partibus*, &c. not *plena* alone, nor *celeris* alone, but both *plena et celeris*. All writs of *præcipe quod reddat*, are, *Quod juste et sine dilacione reddat*, &c. All judicial writs are *sine dilacione*, &c. 2. There did and yet doth lye a writ *de procedendo ad judicium*, when the justices or judges of any court of record, or not of record, delayed the party plaintiff or defendant, demandant or tenant, and would not give judgement: and thereupon an *alias plur'*, and an attachment, &c. doth lye. And the words of the writ be, *Quia redditio judicii loquelæ quæ est coram vobis*, &c. *de quadam transgressione eidem A. per præfat' B. illata, ut dicitur, diuturnam cepit dilacionem ad grave damnum ipsius A. sicut ex querela sua accepimus, vobis præcipimus quod ad judicium inde reddendum cum ea celeritate quæ secundum legem et consuetudinem regni nostri procedas*, &c.

3. Likewise when justices or judges of any court of record, or not of record gave judgement, and delayed the party of his execution, the party grieved may have a writ *de executione judicii*; by which writ the justices or judges are commanded, *Quod executionem judicii nuper redditit*, &c. *de loquela quæ fuit*, &c. *per breve nostrum*, &c. *sine dilacione fieri fac'*. And thereupon an *alias, plur'* and attachment, &c. do lye.

4. By the meeting together upon adjournment of the cause out of the court, where the cause dependeth, &c. All the judges, &c. which now we call an exchequer chamber cause, warranted by the common law and ancient presidents before this statute: and the frequent use of this court of exchequer chamber hath been the cause that this court upon the act of 14 E. 3. hath been rarely put in ure.

5. By the kings writ comprehending *quod si difficultas aliqua interfit*, that the record should be certified into the parliament, and to adjourne the parties to be there at a certain day. *Si obscurum et difficile sit judicium, ponantur judicia in respect' usque magnam curiam*. An excellent record, whereof you may read in the parliament holden at Westminster the Tuesday after the translation of Becket, anno 14 E. 3.

Secondly, by acts of parliament. *Nulli vendemus, nulli negabimus, nec differemus justitiam vel rectum*.

That it shall not be commanded neither by the great-seale, nor by the little-seale, nor by letters, nor any other cause to delay right: and albeit such commandement come, &c. that by them the justices surcease not to do right in no manner. *Vide* 2 E. 3. cap. 8. 14 E. 3. cap. 14. 18 E. 3. stat. 3. 2 R. 2. a statute not in print, Rot. parl. nu. 51. whereby it is enacted, that no justice shall stay justice for any writ, letter of the great-seal or privy-seal, or other commandement whatsoever against the laws and statutes before

IV. INST.

G

that

Regist. 137. a.
F. N. B. 23. c.
And so upon counsels granted.

Regist. fo. 22.
F. N. B. 153. b.
&c. Cust. de
Norm. cap. 27.

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Diuturna dilatio.

Regist. fo. 18.
F. N. B. fo. 20. a.
&c.

See hereafter, ca. Exchequer and Exchequer Chamber.

2 E. 3. fo. 7.
Ellys Callers
case. Braet. lib. r.
ca. 2. rot. parl.
14 E. 3. nu. ult.
Sir Geoff. Stan-
tons case.

Mag. Cart.
ca. 29.

2 E. 3. fo. 3.
per Aldham.
14 E. 3. jour. 24.
18 E. 3. 47. 57.
31 E. 3. an. 161.
39 E. 3. 37.
11 H. 4. 5. 76.
9 H. 6. 58. b.
5 E. 4. 132.
Fortesc. cap. 6.
F. N. B. 240. d.

• Regist. fo.
F.N.B. 240. d.

that time made, Rot. par. 2 H. 4. nu. 64. anno 5 H. 4. nu. 33. all which are declaratory of the common law. * And upon the said act of 2 E. 3. a writ is framed, directed to the justices, by which they are commanded, *Quod ad justitiam partibus, &c. faciend' virtute alicujus mandati de magno sigillo, et parvo sigillo vobis direct' seu dirigend' nullatenus superseatis, &c.* And thus much for the common law and acts of parliament.

This statute of 14 E. 3. cap. 5. consisteth of two generall parts, viz. the preamble and the body of the act. In the preamble three things are to be observed. 1. That (notwithstanding the provision of the common law) mischiefs do happen by delay of judgements. 2. It enumerateth in what courts these delays do happen, viz. in the chancery, in the kings bench, the common bench, and the exchequer, the justices assigned, and other justices to hear and determine deputed. 3. It declareth how these delays have grown, viz. sometime for difficulty of the matter in law, sometime in diversity of opinion of the judges, and sometimes for some other cause, that is, by commandements, letters, or messages of the king or great men, &c. In the body of the act we have collected many observations. 1. That at every parliament there shall be chosen a prelate, two earls, and two barons, (for one bishop, two earles, and two barons.) viz. At this parliament were chosen, 1. John Stratford archbishop of Canterbury, (a man famous for learning, loyalty, and vertuous living.) 2. Rich. Fitzalan earle of Arundel, a man of great wisdom, prowes, and integrity. 3. William Clynton earle of Huntingdon, and admiral of England, a man lately before advanced for his singular valour, wisdom, and vertue. 4. The lord Wake of Lidel. and 5. Ralph lord Bassett of Drayton, two of the most renowned barons of England. *Quos omnes honoris causa nomino.*

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2. This act doth appoint that the prelate, two earls, and two barons are to have a commission and power of the king under the great seal (and none of them can be absent) which commission is to endure untill the next parliament.

3. This commission and power consisteth on ten parts. 1. *Ad audiendum*, to hear the petition delivered to them, the complaints of those that will complain to them of such delays or grievances made. 2. *Ad venire faciend'* to do come before them at Westminster, or elsewhere, the tenor of the records and proceses of such judgements so delayed; and this is to be done by the kings writ of *certiorari*. 3. *Ad venire faciend'*, to cause the same justices to come before them. 4. *Ad audiend' suas rationes et causas talium dilationum*, to hear their reasons and causes of such delays which ought to be entred of record. 5. Which causes and reasons so heard, *ad procedendum*, to proceed to make a good accord. 6. But this must be done not only by themselves, but by the good advice of certain assistants appointed by the act, viz. the chancelour, treasurer, the justices of the one bench and the other, and other of the kings counsell, as many, and such as they shall think convenient. 7. *Ad capiendum*, to take a good accord of the assistants. 8. *Ad faciendum*, to make a good judgement. 9. *Ad remandandum*, to remaund before the justices, before whom the plea did depend, the tenor of the said record, together with the judgement that so shall be accorded.

corded. Lastly, that those justices shall presently give judgement according to the said record.

A commission granted in 18 E. 3. grounded upon this statute, and referring to the same being enacted, as there it appeareth, at a parliament holden *die Mercurii proxim' post medium quadragesimæ anno 14 E. 3. regni Angliæ et Franciæ primo*, there being two parliaments in that year, which you may reade, being worthy of observation, for it is a good exposition of this act.

4. It is further provided by the said act of 14 E. 3. that in case it seemeth to them, that the difficulty is so great, that it cannot well be determined without assent of parliament, that the tenor or tenors shall be brought by the said prelate, earls, and barons unto the next parliament, and there shall finall accord be taken what judgement shall be given in this case.

* It is better that the demandant be delayed, then the tenant disinherited, or that the law be altered. Shard. We cannot nor will delay any man in respect of our oath.

* The justices ought to delay no man in the name of the king where the king hath no right. The demandant shall not be legally delayed twice for one cause.

* Delay in a *quare impedit*, though it be by essoign, is a disturbance. *a Semper fur est in mora. * In circuitu impii ambulant.*

* In divers cases the party grieved shall have an action for unjust delay.

** Tolle moram, semper nocuit differre paratis*

But seeing neither the common law, nor any of the acts of parliament do extend to ecclesiasticall courts, it is then demanded, what if an inferiour ordinary will refuse, or delay to admit and institute a clerk presented by the right patron, to a church within his dioces, or the like: or delay, or refuse to give sentence in a cause depending before him. It is answered, that the archbishop of the province may grant his ^b letters under his seale to all and singular clerks of his province, to admonish the ordinary, within nine dayes to performe that which by justice is desired, or otherwise to cite him to appeare before him or his officiall at a day in those letters prefixed, and to cite the party that hath suffered such delay, then and there likewise to appeare, and further to intimate to the said ordinary, that if he neither perform that which is enjoyned, nor appear, he himselfe without further delay will performe the justice required. Or in the former of the said cases, the party delayed may have his *quare imp.* but that is thought not to be so speedy a remedy.

Rot. pat. 18 E. 3.
2 part.

Rules concerning
delays.

^a 18 E. 3. 54. a.

¹³ H. 4. 4.

²⁴ E. 3. 64. a.

^b 4 E. 3. 2. a.

²² H. 6. 39. per

Newton.

¹⁰ E. 3. 57.

⁴⁰ E. 3. 22. &c.

^c 4 E. 3. 14.

⁶ E. 3. 4.

^d Bracton.

^e Psal. 12. 9.

^f 44 E. 3. 4.

¹⁸ E. 3. 12, 13.

²⁰ H. 6. 10.

²¹ E. 4. 22, 23.

^{F. N. B.} 96. f.

^{97.} b.

^g Ovidius.

^h This is called

duplex querela,

necessary to be

known for find-

ing of institu-

tions, &c.

C A P. VII.

The Court of Kings Bench, *coram Rege.*

Lib. 3. cap. 7.
fa. 105. b.

fa. 108. a.

• Nota.

• A greater prohibition.

Libet niger in
Scaccario, cap. 4.

• Note this word
• See Britton,
f. 1. speaking
of the king, Et
pur ceo que nous
ne sçissions in
cuisse proper per-
son a s'ier & ter-
miner touts querels
del peuple. Avo-
nus partie nostre
e charge en plusieurs
partis come est or-
daine, &c.

20 E. 3. cap. 1.

• Stat de Marl.

52 H. 3. ca. 1.

Vi. 4 H. 4.

ca. 22.

• 24 H. 3. cap. 2.

in effect.

• Bract. lib. 1.

ca. 5. fol. 3. b.

• 20 E. 3. cap. 1.

speaking in the

king's person.

BRAC^TON doth make in few words a notable expression of this court. *Habet rex plures curias in quibus diversæ actiones terminantur, et illarum curiarum habet unam propriam, sicut aulam regiam, et justiciarios capitales qui proprias causas regias terminant, et aliorum omnium, per querelam, vel per privilegium, sive libertatem.* And soon after speaking of the justices of this court saith: *Item justiciariorum quidam sunt capitales, generales, perpetui, et majores à latere regis residentes, qui omnium aliorum corrigere tenentur injurias, et errores.*

And Britton saith: *In droit des justices que sont assignes de nous s'ier et tener nostre lieu ou q. nous seons en Anglitterre. • Voilons que eux ciant comusans de amender faux judgements et de terminer appeales et auters trespasses faitz encontre nostre peace, et * enconter nostre jurisdiction, et leur record se esteant solong; ceo que nous manderons per nostre bre.*

Fleta in describing this court saith: *Habet et rex curiam suam et justiciarios suos tam milites quam clericos locum suum tenentes in Anglia, coram quibus, et non alibi nisi coram semetipso et concilio suo vel auditoribus specialibus falsa judicia et errores justiciariorum revertuntur et corriguntur: ibidem etiam terminantur brevvia de appellis, et alia brevvia super actionibus criminalibus et injuriarum contra pacem regis illatarum impetrata, et omnia, in quibus continetur ubi tunc fuerimus in Anglia.*

In the Black Book of the exchequer, it is thus said of the chief justice of this court: *capitalis justitia præsidet primus in regno.* Out of these three ancient authors we observe these six conclusions.

First, where Bracton saith, *Habet rex plures curias in quibus diversæ actiones terminantur*; hereby, and in effect by ^a Britton, and this conclusion followeth, that the king hath committed and distributed all his whole power of judicature to severall courts of justice, and therefore the judgement must be *ideo consideratum est per curiam.* And herewith do agree divers acts of parliament and book cases, some whereof, for illustration, we will briefly remember; and leave the judicious reader to the rest.

^b *Provisum, concordatum et concessum est, quod tam majores, quam minores justitiam habeant et recipiant in curia domini regis.* ^c That the lawes ecclesiasticall and temporall were and yet are administred, adjudged, and executed by fundry judges, &c. ^d *Expedit etiam magistratus reipublicæ constitui, quia per eos qui juredicendo præsumt effectus rei accipitur; parum enim jus in civitate esse, nisi sint qui possunt jura gerere.*

^e For the pleasure of God and quietnesse of our subjects as to save our conscience, and to keep our oath, by the assent of our great men and other of our counsell, we have commanded our justices, that they shall from henceforth do even law and execution of right to all our subjects, rich and poor, without having regard to any person, without letting to do right for any letters or com-

mandement

mandement which may come to them from us, or from any other, or by any other cause.

Agreeable to that great canon of the law anno 3 E. 1. which we have translated into Latin: *Rex præcipit quod pax sacrosanctæ ecclesiæ et regni jussu custodiatur et conservetur in omnibus, quodq; justitia singularis tam pauperibus quam divitibus administratur, nulla habita personarum ratione.* See the second part of the Institutes, W. 1. cap. 1.

8 H. 4. the king hath committed all his power judiciall, some in one court, and some in another, so as if any would render himselfe to the judgement of the king in such case where the king hath committed all his power judiciall to others, such a render should be to no effect. And 8 H. 6. the king doth judge by his judges (the king having distributed his power judiciall to severall courts) and the king hath wholly left matters of judicature according to his lawes to his judges.

And albeit it be enacted that the delinquent shall be fined at the will of the king, *Non dominus rex in camera sua, nec aliter nisi per justiciarios suos (finem imponit) et hæc est voluntas regis, viz. per justiciarios et legem suam, unum est dicere.*

The second conclusion is, that in those dayes this court of kings bench did follow the court: and therefore Bracton calleth it *aulam regiam*, because they sat in the kings hall. Britton calleth the justices of this court, *justices assignes de nous suer*: and Fleta, *ubi tunc fuerimus in Anglia*.

The third is, that it is called the kings bench, and the pleas thereof *coram rege*: because in this court (as Bracton saith) those *capitales justiciarii proprias regis causas terminant*, and therefore the king himselfe cannot be judge in *propria causa*.

The fourth is, that under these words [*proprias causas*] are included three things. First, all pleas of the crowne; as all manner of treasons, felonies, and other pleas of the crown which *ex congruo*, are aptly called *proprie cause regis*, because they are *placita coronæ regis*. Secondly, regularly to examine and correct all and all manner of errors in *fact*, and in law, of all the judges and justices of the * realm in their judgements, processe, and proceeding in courts of record, and not only in pleas of the crown, but in all pleas, reall, personall, and mixt, (the court of the exchequer excepted, as hereafter shall appear.) And this is *procurum quarto modo* to the king in this court: for regularly no other court hath the like jurisdiction, and therefore may be well called *propria causa regis*. and these two be of high and soveraign jurisdiction. * Thirdly, this court hath not only jurisdiction to correct errors in judiciall proceeding, but other errors and misdemeanours extrajudiciall tending to the breach of the peace, or oppression of the subjects, or raising of faction, controversy, debate, or any other manner of misgovernment; so that no wrong or injury, either publick or private, can be done, but that this shall be reformed or punished in one court or other by due course of law. As if any person be committed to prison, this court upon motion ought to grant an *habeas corpus*, and upon returne of the cause do justice and relieve the party wronged. And this may be done though the party grieved hath no priviledge in this court. It granteth prohibitions to courts temporall and ecclesiasticall, to keep them within their proper jurisdiction. Also this court may baile any person for any offence

W. 1. 22. 3 E. 1.
cap. 1.
Fleta lib. 1.
ca. 29.

[71]

8 H. 4. fo. 19.

8 H. 6. 20 & tit.
Grant. F. 5.

2 R. 3. fol. 12.

Of these you may read in Glanvil. lib. 1. cap. 2. Sec. & lib. 10. cap. 18. and in the third part of the Institutes per totum, & Stanf. per totum.

* And in Ireland of errors in the kings bench there. lib. 7. fo. 18. F. N. B. 22. 34. Ass. 7. 39 E. 3. Error 88. a Lib. 11. fo. 98. Jam. Baggescafe Vid. 10 E. 3. ca. 3. Mar-shallea.

whatsoever. And if a freeman in city, burgh, or town corporate be disfranchised unjustly, albeit he hath no priviledge in this court, yet this court may relieve the party, as it appeareth in James Bagges case, *ubi supra, et sic in similibus*.

F. N. B. 89. 92.
* Tr. 19 E. 3.
coram rege
rot. 56. Linc.

b 2 part of the
Institutes, Mag-
na Carta, cap. 11.

Fourthly, this court may hold plea by writ out of the chancery of all trespasses done *vi et armis*, of replevins, of * *quare impedit, &c.*

b See the second part of the Institutes, the 11 chapter of Mag. Carta, *Communia placita non sequantur curiam nostram*.

Fifthly, this court hath power to hold plea by bill for debt, detinue, covenant, promise, and all other personall actions, *ejectione firme*, and the like, against any that is in *custodia mareschalli*, or any officer, minister, or clerk of the court: and the reason hereof is, for that if they should be sued in any other court they should have the priviledge of this court: and lest there should be a fayler of justice (which is so much abhorred in law) they shall be impleaded here by bill though these actions be common pleas, and are not restrained by the said act of Magna Carta, *ubi supra*. Likewise the officers, ministers, and clerks of this court privileged by law in respect of their necessary attendance in court, may impleade others by bill in the actions foresaid. And all this appeareth by Bracton, who lived when Magna Carta was made, *ubi supra*: where he saith, *Et aliorum omnium per querelam vel per privilegium sive libertatem*. And continuall experience concurrith with antiquity herein.

[72]

See the second
part of the In-
stitutes, *ubi*
supra, 27 H. 3.
coram rege.
rot 9.
Hus & Haut,

H. P. captus per querimoniam mercatorum Flandrie et imprisonatus offert domino regi hus et haut in plegio ad standum recto, et ad respondendum predictis mercatoribus, et omnibus aliis qui versus eum loqui voluerint, &c. This plea was after the statute of Magna Carta, anno 9 H. 3. Of these words *hus* and *haut*, two French words. *Hus* signifying an elder-tree, and *haut* the staffe of a halbert, &c. I leave the conjecture that some have made thereof to themselves: we think it was then common bail changed now to *Do* and *Ro*, and the rather for this word [*effert*.] And it is observable, that then putting in baile at one mans suit, he was in *custodia mareschalli* to answer all others which would sue him by bill, and this continueth to this day. If any person be in *custodia mareschalli, &c.* be it by commitment, or by latitat', bill of Mid' or other proces of law, it is sufficient to give the court jurisdiction: and the rather, for that the court of common pleas is not able to dispatch all the subjects causes, if the said actions should be confined only to that court. And seeing none but serjeants at law can practise in the court of common pleas, it is necessary that in this court of kings bench apprentices and other counsellors of law might by experience inable themselves to be called serjeants afterwards; otherwise serjeants must want experience, which is the life of their profession. And the proceedings in that court for so long time, and under so many honourable judges and reverend sages of the law, hath gotten such a foundation, as cannot now without an act of parliament be shaken. And the errors in the kings bench cannot be reversed (but in certain particular actions by the statute of 27 Eliz. cap. 8. wherein the jurisdiction of the court is saved) but in the high court of parliament, as before in the chapter of the court of parliament appeareth.

31 H. 6. 10. b.
adjudge.

Sixthly,

Sixthly, if a writ in reall action be abated by judgement in the court of common pleas, and in a writ of error the judgement is reversed in this court, and the writ is adjudged good, this court shall proceed upon this writ, and is not restrained by Magna Carta, *ubi supra, ne curia domini regis deficeret in iustitia exhibenda.*

This court may hold plea in assise of *novel disseisin* without any patent, for it is *querela* and not *placitum*, and so not within these words *communita placita*, as it hath been expounded and warranted by continuall experience.

A *scire fac'* to repeal a patent of the king may be brought in this court. And where Fleta saith, *Nisi coram semetipso et concilio suo, vel auditoribus specialibus falsa judicia ac errores justiciariorum revertuntur*: It is to be known that all the common law errors in the court of exchequer (being the proper court of the king for his revenue and profit) were examinable before commissioners appointed by the kings writ under his great seal, which Fleta here calleth *auditores speciales*. But now by the statute of 31 E. 3. the chancelour and treasurer taking to them the justices and other sage persons, such as to them seemeth to be taken, shall examine the errors in the exchequer, &c.

^a In ancient time, when pleas were holden in parliament, when the parties descended to issue, the record was adjourned into the kings bench to be tried there.

^b See the statute of W. 1. against preposterous hearings in this court, and the exposition of the same in the second part of the Institutes.

^c By the statute of *Artic' super Cart.* the chancelour and the justices of the kings bench were to follow the court: but notwithstanding both the chancery and the kings bench were at this time settled courts during the severall terms * of the year, as by infinite records both before and after this statute doth appear. So as at this time they did not attend in the kings court, but when they were called yet were accounted as parcell of the kings household as long as they followed the court; but this cumbersome attendance wholly ceased in the reign of E. 3. and yet the lord chancelour would have had his purveyance, as if he had continued still as one of the household, untill he and all others, but those of the kings, queens, or princes household only, were restrained by act of parliament. 34 E. 3. cap. 2.

times and termes the court of chancery did sit.

3 H. 7. 22.
14 H. 7. 14.
23 E. 3. 46.
11 H. 4. 49. in
nativo habenda.

F. N. B. 177.
30 Aff. 35. Aff.
de mord.

3 H. 4. 7.

See more hereof
in the chapter of
the Exchequer.
31 E. 3. cap. 12.

^a Rot. par.
18 E. 3. 28. 97.
Placit. int. Jo.
de novo Borgo &
Regman, &c.

^b W. 1. cap. 14.
Against prepos-
terous hearings.

^c Art. sup. cart.
28 E. 3. cap. 5.
Glan. temp.
H. 2. lib. 2. ca. 6.
& lib. 17. ca. 2.
*Coram iusticiis
domini regis in
banco sedentibus.
Vid. ad iudicatu
coram rege in
every terme,
from 1 E. 2. dur-
ing all his reign
in every severall
term in theyears.
And in all those*
34 E. 3. ca. 2.

* [73]

Also upon perusall of the records in the reign of H. 3. from the beginning of his reign untill the ending of it, this court sat in the term time where the other courts of justice did sit. And the pleas were stiled to be holden *coram rege* as to this day they are: and this appeareth by Fitzh. Abridgement, in the titles of Corone, of Brief, of Wast, &c. and by Bracton who in many places voucheth judgments in the reign of H. 3. in terms *coram rege*. And this appeareth also in elder times: but hereof thus much shall suffice to prove, that at the making of the said act of 28 E. 1. and long before, this court in term times sat with the kings other courts, and specially for pleas of the crown, &c. and that the said act

And so did the
chancery both of
them being to
some purposes
but one court as
it appeareth in
the chapter of
the court of
chancery.

is to be intended, that the chancelour and the judges of this court should attend the king and follow the court when they were required:

9 El. Dier 187.
27 Aff. p. 1.

It is truly said that the justices *de banco regis* have supream authority, the king himself sitting there as the law intends. They be more then justices in eire.

9 E. 4. 18.
4 H. 7. 18.
14 H. 7. 21.
li. 9. fo. 118. a
& b.
Segnior Sanchez case.

The justices in this court are the sovereign justices of oier and terminer, gaol-delivery, conservators of the peace, &c. in the realm. See the books in the margent, you shall find excellent matter of learning concerning the supream jurisdiction of this court.

In this court the kings of this realm have sit in the high bench, and the judges of that court on the lower bench at his feet; but judicature only belongeth to the judges of that court, and in his presence they answer all motions, &c.

17 E. 3. 13. 2.
Jib. 4. fo. 57. in
the Sadlers case.
Pl. Com. 262.
21 Aff. 12.
27 aff. 1. 28 aff.
52. 21 H. 7. 29.
b Pasch. 12 E. 3.
coram rege,
Ro. 99. Chicheff.
W. 1. cap. 3.
lib. 9. fo. 118.
ubi supra.

The justices of this court are the sovereign coroners of the land, and therefore where the sherif and coroners may receive appeals by bill, *à fortiori* the justices of this court may do it.

So high is the authority of this court, that when it comes and sits in any county, the justices of eire, of oier and terminer, gaol-delivery, they which have conufance, &c. doe cease without any writing to them. But if any indictment of treason or felony in a foreign county be removed before certain commissioners of oier and terminer in the county where this court sits, yet they may proceed, because this court (for that this indictment was not removed before them) cannot proceed for that offence. But if an indictment be taken in Midd. in the vacation, and after this court sit in the next term in the same county (if this court be adjourned) then may speciall commissioners of oier and terminer, &c. in the interim proceed upon that indictment, but the more usuall way is by speciall commission. And all this was resolved by all the judges of England at Winchester term, anno 1 Jacobi regis, in the case of Sir Everard Digby and others: and so had it been resolved, Mich. 25 & 26 Eliz. in the case of Arden and Somerville, for this kind of special commission of oier and terminer: and herewith agreeth Pl. Com. in the earl of Leic' case, anno 1 Mar. reginae.

Hil. 1 Jac. Sir
Walter Raleighs
case, &c.
Pl. Com. fo 388.
count de Leic'
case acc'.

22 E. 3. 6. b.
24 E. 3. 73.
29 aff. 52.
Stanf. pl. cor. 15.

And so supream is the jurisdiction of this court, that if any record be removed into this court, it cannot (being as it were in his centre) be remaunded back, unlesse it be by act of parliament. And this appeareth by the judgment of the parliament in anno 6 H. 8. but by the authority of that act indictments of felonies and murders removed into the kings bench may by the justices of that court be remaunded, and this court may send down as well the bodies of all felons and murderers, as their indictments into the counties where the same murders or felonies were committed or done, &c. in such manner, &c. as if the indictments had not been brought into the kings bench. But the justices of the kings bench of their own authority may grant a *nisi prius* in case of treason, felony, and other pleas: for there they send but the transcript of the record, and not the record itself, as shall be said in the chapter of Justices of *nisi prius*. But if the justices of the kings bench doe perceive that any indictment is to be removed into that court by practise or for delay, the court may refuse to receive the same, before it be entred of record, and remand the same back again for justice to be done.

6 H. 8. cap. 6.
It extendeth on-
ly to felonies
and murders.

[74]

See before cap.
Parliam. pag. 21.
when a writ of
error is sued of a
judgment, *coram
rege*, they pro-
ceed *super tenorem
recordis*, and the
record it self
remaineth in this
court.

2 H. 4. cap. 10.

By the statute of 2 H. 4. the clerk of the crown of this court, if
four score